

AGREEMENT FOR JUVENILE PROBATION SERVICES
between
LARAMIE COUNTY, WYOMING and
CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES

This Agreement is between Laramie County, Wyoming (“County”), 310 West 19th Street, Suite 300, Cheyenne, Wyoming 82003-0608 and the City of Cheyenne, Office of Youth Alternatives, (“Contractor”), 1328 Talbot Court, Cheyenne, Wyoming 82001. The parties hereto do mutually agree as set forth below.

I. PURPOSE

- a. To deliver services for juveniles appearing in the juvenile division of Laramie County Circuit Court and the Municipal Court of the City of Cheyenne.
- b. To implement a supervised probation program for juveniles appearing in the juvenile division of Laramie County Circuit Court and the Municipal Court of the City of Cheyenne. Juveniles are defined as those individuals under the age of eighteen (18).
- c. To provide coordination of drug and alcohol services to Juveniles appearing in the Laramie County Circuit and City of Cheyenne Municipal Courts.

II. TERM

This Agreement shall commence on July 1, 2026, and shall remain in full force and effect through June 30, 2027, unless terminated in accordance with the terms and conditions set forth herein.

III. RESPONSIBILITIES OF COUNTY

County shall pay to Contractor an amount to not to exceed Eighty-Six Thousand, Three Hundred Four Dollars (\$86,304.00). Payment will be made in a series of twelve (12) monthly payments, with each such monthly payment being for one twelfth (1/12) of the total amount of payment under this contract. Payments may be suspended for any period which services are not rendered. Each monthly payment will be made only after receipt of Contractor’s invoice to County. Payment shall be in accordance with W.S. § 16-6-602 (as amended).

IV. RESPONSIBILITIES OF CONTRACTOR

- a. Attendance and participation in the Juvenile Screening Committee and pre-court assessment and screening of juveniles scheduled to appear in the Courts.

- b. Coordination of Juvenile Diversion and Probation Services, which includes:
 - i. monitoring and tracking of all youth assigned to the program;
 - ii. schedule and notify all parents and youth for court attendance;
 - iii. schedule random law enforcement home checks;
 - iv. coordinate treatment program and client case reviews;
 - v. ensure all other orders of the court(s) are adhered to;
 - vi. provide consultation to the Circuit and Municipal Court Judges as requested;
- c. Serve as the probation officer(s) to all cases where a juvenile is placed on probation. Probation officers will:
 - i. provide direct supervision of assigned cases;
 - ii. ensure random urinalysis tests are conducted;
 - iii. monitor school attendance and performance;
 - iv. review misconduct and recommend appropriate graduated sanctions;
 - v. conduct regular (at least monthly) meetings with parents;
- d. Provide probation supervision of all assigned cases from the Municipal and Circuit courts consistent with the services listed in section 3 above.
- e. Contractor shall maintain complete case records of the services provided pursuant to this agreement. Contractor shall retain all records generated while performing service pursuant to this agreement for three (3) years after the County makes final payment and all other matters relating to this Agreement are concluded. Contractor shall provide quarterly reports detailing level of services to the Laramie County Grants Manager on a timely basis. Contractor shall permit access by the County or any of its duly authorized representatives to any books, documents, papers and records of the Contractor which are directly pertinent to this specific Agreement for purposes including but not limited to audit, examination, excerpts, and transcriptions.

V. GENERAL PROVISIONS

- a. Independent Contractor: The services to be performed by Contractor are those of an independent contractor and not as an employee of County. Contractor is not eligible for Laramie County Employee benefits and will be treated as an independent contractor for federal tax filing purposes. Contractor assumes responsibility for its personnel who provide services pursuant to this contract and will make all deductions required of employers by state, federal and local laws and shall maintain liability insurance for each of them. Contractor is free to perform the same or similar services for others.
- b. Confidentiality of Information: Contractor acknowledges that information it may receive or have access to as a result of its performance under this Agreement may

be confidential pursuant to law. Contractor agrees that it shall comply with all applicable laws and regulations, whether state or federal, in the collection, maintenance, and release of such information. County and its agents, or authorized representatives, shall have access to all confidential information in accordance with the requirements of state and federal laws and regulations. Any other parties will be granted access to confidential information only after complying with the requirements of state and federal laws and regulations pertaining to such access. Nothing herein shall prohibit the disclosure of information in summary form, including the publishing of reports or services provided in this Agreement, so long as the identity of the client remains confidential and all other requirements of law or regulation are met.

- c. Entire Agreement: This Agreement (7 pages) represents the entire and integrated agreement and understanding between the parties and supersedes all prior negotiations, statements, representations and agreements, whether written or oral.
- d. Assignment: Neither this Agreement, nor any rights or obligations hereunder shall be assigned or delegated by a party without the prior written consent of the other party.
- e. Modification: This Agreement shall be modified only by written agreement, duly executed by all parties hereto, including review and approval as to form by the Laramie County Attorney's Office. Any document purporting to modify this Agreement that fails to meet this standard shall be ineffective as to modification.
- f. Termination: This Agreement may be terminated:
 - i. by either party at any time for failure of the other party to comply with the terms and conditions of this Agreement;
 - ii. by either party, with thirty (30) days' written notice to the other party; or
 - iii. upon mutual agreement, in writing, by both parties.
- g. Remedies for Breach. If either party materially breaches this Agreement, the non-breaching party shall give the breaching party written notice describing the breach, and the breaching party shall have fifteen (15) days from receipt of the notice to cure the breach. If the breach is not cured within that period, the non-breaching party may terminate this Agreement as provided in the Termination provision and pursue any remedy available at law or in equity for the uncured material breach including but not limited to repayment to the County of misappropriated funds distributed under this Agreement. Each party shall bear its own attorneys' fees and costs incurred in connection with any dispute under this Agreement. Nothing in this provision waives, limits, or enlarges either party's governmental or sovereign immunity or any defense available under Wyoming law, including the Wyoming Governmental Claims Act, W.S. § 1-39-101 *et seq.* This provision shall not be construed to entitle either party to consequential, incidental, or punitive damages.

- h. Invalidity: If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, or if the County is advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this Agreement are fully severable.
- i. Applicable Law and Venue: The parties mutually understand and agree this Agreement and shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this Agreement and Addendum or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming or the Federal District Court, District of Wyoming. This provision is not intended, nor shall it be construed to waive the County's governmental immunity as provided in this Agreement.
- j. Discrimination: The Contractor acknowledges that the County, in accordance with the provisions of Title VI of the Civil Rights Act of 1964 (78 Stat. 252, 42 U.S.C. §§ 2000d to 2000d-4) and any associated State or Federal laws and regulations, strictly prohibits unlawful discrimination based on an individual's gender (regardless of gender identity or gender expression), race, color, religion, creed, national origin, ancestry, age forty (40) years or older, marital status, disability, sexual orientation, genetic information, or other characteristics protected by law. Pursuant to Federal Law sexual orientation means a person's actual or perceived orientation toward heterosexuality, homosexuality, and bisexuality. The County also strictly prohibits unlawful harassment in the workplace, including sexual harassment. Further, the County strictly prohibits unlawful retaliation against a person who engages in protected activity. Protected activity includes an employee complaining that the employee has been discriminated against in violation of the above policy or participating in an employment discrimination proceeding.
- k. ADA and Public Accommodations: In performing the Services required hereunder, the Contractor/Service Provider/Vendor agrees to meet all requirements of the Americans with Disabilities Act of 1990 (ADA), P.L 101-336, 42 U.S.C. § 12101, *et seq.*, and all applicable rules and regulations and all applicable Wyoming public accommodation laws, which are imposed directly on the Service Provider or which would be imposed on the County as a public entity.
- l. Governmental/Sovereign Immunity: The Parties do not waive their Governmental/Sovereign Immunity, as provided by any applicable law including W.S. § 1-39-101 *et seq.*, by entering into this Agreement. Further, the Parties fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designations of venue, choice of law, enforcement actions, and similar provisions

shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall be construed in favor of immunity.

- m. Third Parties: The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to the Agreement and shall inure solely to the benefit of the parties to this Agreement.
- n. Indemnification: Each party shall be responsible for liabilities arising from its own negligence, willful misconduct, violation of law, or breach of this Agreement. Neither party shall be required to insure, defend, or indemnify the other except to the extent expressly set forth in the Agreement or required by applicable law.
- o. Conflict of Interest: County and Contractor affirm, to their knowledge, no County employee has any personal beneficial interest whatsoever in the agreement described herein. No staff member of Contractor, compensated either partially or wholly with funds from this Agreement, shall engage in any conduct or activity which would constitute a conflict of interest relative to this Agreement.
- p. Force Majeure: No party hereto shall be considered in default in the performance of an obligation hereunder to the extent that performance of such obligation is delayed, hindered, or prevented by force majeure. Force majeure shall be any cause beyond the control of the party that could not reasonably have been foreseen and guarded against. Force majeure includes, but is not limited to, acts of God, fires, riots, pandemics, incendiarism, interference by civil or military authorities, compliance with regulations or orders of military authorities, and acts of war (declared or undeclared), provided the cause could not have been reasonably foreseen and guarded against by the affected party. Force majeure shall not include increases in labor, commodity, utility, material, supply, fuel, or energy costs, or compliance with regulations or orders of civil authorities. To the extent that the performance is actually prevented, the Contractor must provide notice to the County of such condition within ten (10) calendar days from the onset of the condition.
- q. Contingencies: Contractor certifies and warrants that no gratuities, kick-backs, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gift or other considerations made contingent upon the award of this Agreement.
- r. Appropriation: The County's payment obligation is conditioned upon the availability of funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the rent fees required by the Agreement, the Agreement may be terminated by the County at the end of the period for which funds are available. The County shall notify Contractor at the

earliest possible time of the services which will or may be affected by a shortage of funds. At the earliest possible time means at least thirty (30) days before the shortage will affect payment of claims, if the County knows of the shortage at least thirty (30) days in advance. No penalty shall be accrued to the County in the event this provision is carried out, and the County shall not be obligated or liable for any future payments due or for any damages as a result of termination under this provision. This provision shall not be interpreted or construed to permit County to terminate this Agreement in order to acquire similar services from another party. Payments shall be in accordance with W.S. § 16-6-602 (as amended).

- s. Notices: All notices required and permitted under this Agreement shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when personally delivered to such party. A party may change its address for notice hereunder by giving written notice to the other party.
- t. Compliance with Law: The parties agree that they shall comply with all applicable laws, regulations and ordinances, whether Federal, State or Local.

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VI. SIGNATURES

IN WITNESS THEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the day and dates set below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement as set forth herein.

LARAMIE COUNTY, WYOMING

By: _____ Date _____
Laramie County Board of Commissioners

ATTEST:

By: _____ Date _____
Laramie County Clerk

REVIEWED AND APPROVED AS TO FORM ONLY:

By: _____ Date _____
Laramie County Attorney's office

CITY OF CHEYENNE, WYOMING

By: _____ Date _____
Mayor

ATTEST:

By: _____ Date _____
City Clerk

REVIEWED AND APPROVED AS TO FORM ONLY:

By:  _____ Date 8/12/2026
Cheyenne City Attorney

This Agreement is effective the date of the last signature affixed to this page.